

STRICTLY CONFIDENTIAL

CONSULTANT UNDERSTANDING AGREEMENT

You ("Consultant" or "You" or "Your") have been assigned by Birlasoft Inc., Birlasoft Solutions Inc. or Birlasoft Consulting, Inc. (hereinafter referred to as "Birlasoft") through a Birlasoft vendor/contractor to perform contract services ("Services") for a Birlasoft customer ("Company") or an affiliate or subsidiary of the foregoing (individually and collectively, the "Company"). As a condition of Birlasoft's, it is a requirement that you agree (i) to hold in confidence information that you learn about the Company as a result of your work, (ii) that the results of your work will be owned by the Company, and (iii) to not solicit Company or Birlasoft personnel.

This Consultant Understanding Agreement ("Agreement") is for the benefit of the Birlasoft and/or Company.

1. **Conflict of Interest.** You warrant that your work with Birlasoft will not in any way conflict with any obligations you may have in favor of prior or other employers or in favor of other persons or entities. You further warrant that, during the time you are providing Services to Birlasoft, you will refrain from any other activities that would present a conflict of interest with your work on behalf of Birlasoft.

2. **Secrecy.** You agree and covenant to hold in strict confidence all proprietary and confidential information that you obtain from, or as a result of your work for Birlasoft, or that you develop for Birlasoft and/or Company, and you agree not to use for your own benefit or for the benefit of others, or disclose to others, at any time during or after termination of your work for Birlasoft, such information without the prior written consent of Birlasoft and/or the Company. You also agree that you will not knowingly disclose to Birlasoft and/or the Company any information that is the secret, confidential, or proprietary information of any other person or entity. Confidential information includes, but is not limited to, all Birlasoft or Company non-public information furnished or made available to you orally, in writing, or any other form in connection with your work for Birlasoft and the Company or developed by you, such as data, ideas, concepts, procedures, know-how, business processes, practices, methods, policies, plans, publications, documents, research, operations, services, strategies, techniques, agreements, terms of agreements, transactions, potential transactions, negotiations, pending negotiations, computer programs, computer software, applications, software design, work-in-progress, databases, manuals, records, articles, systems, financial information, staffing information, personnel information, employee lists, supplier lists, vendor lists, developments, internal controls security procedures, graphics, sales information, revenue, costs, inventions, unpublished patent, original works of authorship, discoveries, deliverables, notes, summaries, reports, analyses, compilations, studies, lists, charts, surveys and other materials, both written and oral, in whatever form maintained concerning the business of Birlasoft or Company or Birlasoft or Company's customers and/or vendors. Confidential information also includes any personal data as defined by and under the applicable law ("Personal Data") you may be furnished with or exposed to in the performance of your work for Birlasoft and Company. ***You further agree that you shall not transfer Personal Data, which has been obtained by or made available to you during the course of your engagement with Birlasoft and Company within one Country outside the geographical area of that Country or allow persons outside that country to have access to it.*** Confidential information excludes all information and materials that are or become publicly available through means other than through the violation of an obligation of confidentiality to Birlasoft, Company, or any other party. Your obligation of confidentiality shall continue in effect (a) for seven years following the date you last provided Services to Birlasoft with respect to all confidential information that is not a trade secret, (b) for as long as such confidential information remains a trade secret under applicable law, with respect to confidential information that is a trade secret, and (c) in perpetuity with respect to all Personal Data or customer data.

3. **Inventions and Copyrights**
 - a. You understand, acknowledge, and agree that any work product that you produce in providing Services to Birlasoft and any inventions, developments, suggestions, ideas, innovations, concepts, or reports conceived, created, developed or discovered by you as a part or a result of your to Birlasoft (a "Development") shall be the sole property of, Birlasoft and/or Company. You agree to promptly notify Birlasoft of any Development,

and, if deemed necessary or desirable by Birlasoft, you agree to execute any documents provided by Birlasoft and/or Company to convey or perfect ownership in any such Development in Birlasoft and/or Company or its designee, including an assignment in the form provided by Birlasoft or Company. You understand, acknowledge and irrevocably agree to assign to Birlasoft or Company all worldwide rights, title and interests, whether by status, common law or any other applicable law, in all inventions and ideas (whether patentable or not), copyright works (or works of authorship) and mask works (as defined by SCPA), made created or conceived by you (alone or jointly with others) during the period of your Services with Birlasoft which: (a) relate to the actual or anticipated business, research and development of Birlasoft, Company, or its customer; or (b) are suggested by or result directly or indirectly, from any work which you have done or may do for or on behalf of Birlasoft (including its customers); or (c) are developed, tested, improved, either in whole or in part, during your Services or while you were using or receiving the benefit of any resources of Birlasoft or Company. You agree to cooperate with Birlasoft and Company, at Birlasoft or Company's expense, in obtaining, maintaining, or sustaining patents or other intellectual property protection anywhere in the world with respect to any such Developments. Should any such Developments be the result of combined efforts with, or the invention of, any person or persons, other than yourself, you will so inform Birlasoft of this at the time you notify Birlasoft of the Development. Your obligations under this Agreement will survive any termination of your Services or agreement with Birlasoft through the Birlasoft vendor/contractor and any expiration or termination of any Services, work order, other assignment, or agreement with Birlasoft under which you are performing Services. In the event you are unable for any reason to execute an assignment as provided for this Agreement, you agree to appoint as my Attorney, to the extent allowed by law, any officer which Birlasoft may designate any time after 24 hours of your said refusal or incapacity to act as your Attorney to execute all necessary papers for assignment to take effect as if the same were done personally by you.

- b. You agree that all copyrightable material that results from Services performed by you for Birlasoft shall belong exclusively to Birlasoft and/or the Company. If by operation of law any such copyrightable materials are deemed not to be works made for hire (as defined in the Copyright Act of 1976 (17 U.S.C. § 101) and/or in any other applicable laws) then you hereby assign, and agree to assign in the future, to Birlasoft and/or the Company the ownership of such materials and the copyrights for the same. Birlasoft and/or the Company may obtain and hold in its own name copyrights, registrations, and other protection that may be available with respect to such copyrightable material, and you agree to provide Birlasoft and/or the Company any assistance required to perfect such protection. You also agree to waive any "artist's rights", "moral rights", or other similar rights you might otherwise have in any copyrightable materials you develop during your Services for Birlasoft. To the extent you cannot effectively waive such rights; you agree not to seek to enforce such rights against Birlasoft and/or Company or any purchaser or licensee of such materials from Birlasoft and/or Company.
- 4. In the event you knowingly, and without prior notice to Birlasoft, make any disclosure or perform or cause to be performed any work on behalf of Birlasoft which threatens, conflicts or infringes the rights of any third party, you hereby agree to fully indemnify and hold Birlasoft harmless for all losses, damages, costs, charges, claims and expenses (including but not limited to all legal expenses on a full indemnity basis) as a consequence of your action herein described.
- 5. **Copy and Return of Data.** You agree not to copy any documents or information in relation to the Information for the use during the engagement and shall, prior to termination of your Services or at any time upon Birlasoft's or Company's request, return promptly to Birlasoft or Company all such Confidential Information or Birlasoft's or Company's data which you may have in your possession, custody, or control.
- 6. **Relationship.** In furnishing Services to Birlasoft under any Work Order or other agreement between Birlasoft and Birlasoft's vendor/contractor, you will not be an employee of the Birlasoft or Company and will not by reason of this agreement or the performance of your Services be entitled to participate in or receive any benefit or right under any of Birlasoft's or Company's employee benefit or welfare plans, including, without limitation, employee insurance, pension, savings and stock bonus, and savings and security plans.

7. **Non-Solicitation.** While engaged with Birlasoft and for a period of twelve (12) months from the termination of the Services with Birlasoft, you agree not to directly or indirectly either alone or in concert with others:
- a. solicit any employment from the Company;
 - b. solicit or entice any employee of Birlasoft or Company to leave Birlasoft or Company or work for any other person or business entity in competition with Birlasoft or Company;
 - c. solicit (or accept an offer to perform) any services similar to the Services, from Company or Birlasoft customer to whom you were introduced by Birlasoft; or
 - d. solicit or in any way attempt to divert Company or any customer of Birlasoft to do business with any person or business entity in competition with Birlasoft.

The term customer or Company, as used in above clauses, refers to any person, company, partnership or entity for whom you have performed services at any time during your engagement with Birlasoft.

8. **Birlasoft Policies.** You have read and understood the below mentioned policies and you hereby agree to abide by the same at all times during your Services for Birlasoft and/or its customers, vendors, and all other stakeholders ("Supplier" in this Section shall mean the Birlasoft vendor company you are an employee of or performing service through):
- a. **Anti-Boycott, Export Control and Anti-Corruption Laws.** Each Supplier will comply with all applicable anti-boycott, export controls and customs laws when exporting goods or technology from the United States to a foreign country, or any time it exports goods with United States components or United States technology from outside the United States to a foreign country. Birlasoft has a zero-tolerance policy in relation to bribery and corruption. Birlasoft reserves the right to immediately terminate any Supplier who is not in compliance with these requirements. In conformance with Geo-specific anti-corruption laws and regulations including but not limited to the United States Foreign Corrupt Practices Act (the "Act"), Supplier shall not offer, pay, give, promise to pay or give, or authorize the payment of money or anything of value directly or indirectly to any foreign official for purposes of:
 - i. influencing any act or decision of the foreign official in such person's official capacity; inducing the foreign official to do or omit to do any act in violation of such person's lawful duty; or securing any improper advantage; or
 - ii. inducing the foreign official to use such person's influence with a foreign government or instrumentality to affect or influence any act or decision of the government or instrumentality; in order to assist Supplier, or Birlasoft or its affiliates to obtain or retain business for, with, or directing business to, any person.
 - iii. The Act defines a "foreign official" as (a) any elected or appointed official of a local, state, provincial or national government outside the United States irrespective of rank, title or stature of such person; (b) any candidate for office in any local, state, provincial or national government outside the United States; (c) any official or political party outside the United States; (d) any official in a public international organization; and (e) any official or representative of a business that is owned or controlled by a government outside the United States. Supplier shall also comply with any other applicable anti-corruption statutes governing the services provided by Supplier/vendor.
 - iv. Additionally, in conformance with the UK Bribery Act of 2010, Supplier shall not offer, promise, or give a financial or other advantage to another person, whether a national of the U.K., U.S. or elsewhere, with the intention of inducing or rewarding a person to perform certain functions improperly, where there is an expectation that those functions are to be performed in good faith, impartially, or in a position of trust; and requesting, agreeing to receive, or accepting a financial or other advantage from another person whether a national of the U.K., U.S. or elsewhere, intending that, in consequence, a relevant function or activity (as explained above) should be performed improperly or as a reward for the improper performance of a relevant function.
 - b. **Conflicts of Interest.** Birlasoft's Code of Business Conduct and Ethics prohibits conflicts of interest

that compromise the independence or objectivity of personnel or business relations. To the extent that Supplier is related by birth, marriage, and family relations or otherwise to Birlasoft personnel (particularly any personnel involved in a business transaction with Supplier), such relationships must be disclosed exclusively in the Supplier information form or Supplier Questionnaire Form prior to entry into a transaction. Once potential conflicts are analyzed and cleared, an arm's length process may continue. Additionally, inappropriate payments, gifts or favors may not be exchanged between Suppliers and Birlasoft personnel in connection with the Supplier selection process, renewals or otherwise.

- c. **Monitoring and Reporting.** Birlasoft will use a risk-based approach to monitor Suppliers' implementation of and adherence to the Guidelines. Suppliers are expected to identify, correct and monitor the continued compliance of any activities that are not in compliance with these Guidelines. If Supplier becomes aware of any actual or potential act or failure to act which is contrary to the Guidelines, Supplier must immediately notify on email id whistleblower@birlasoft.com Where serious breaches of the Guidelines are identified and persist, Birlasoft will consider termination of the business relationship with the Supplier concerned
- d. **Equipment and Information Security.** To safeguard against unauthorized access to Information by third parties outside Birlasoft, all electronic Information containing confidential information of Birlasoft held by Supplier shall be maintained on systems that are protected by secure network architectures that contain firewalls, regularly monitored intrusion detection devices, and strong encryption. The servers holding Information shall be "backed-up" (i.e. the data is recorded on separate media) on a regular basis to avoid the consequences of any inadvertent erasure or destruction of Information, and such back up media shall also be encrypted. The servers shall be located in facilities with comprehensive security and fire detection and response systems. Additionally, upon termination of your Services or at any time upon Birlasoft's or Company's request, Supplier and/or Consultant shall return promptly to Birlasoft or Company all equipment provided by Birlasoft or Company to Supplier or Consultant in the course of Services.

You are fully aware that non-conformance of the Birlasoft policies and guidelines above or any other policies and guidelines provided to you by Birlasoft or Company may result in the loss of sensitive information of Birlasoft or its customer(s) and/or may expose Birlasoft or its customer(s) into business risks. Such actions shall be considered as a serious misconduct and a violation of the Birlasoft Code of Ethics. In case you are found to have willfully or due to negligence violated the policies and guidelines, Birlasoft has the right to take appropriate action.

- 9. **Consultant Privacy Notice.** You acknowledge and accept the Birlasoft Consulting Privacy Notice set forth in Exhibit 1.
- 10. **Governing Law.** This agreement, its validity, performance, construction, and effect shall be governed by the laws of the State of New Jersey, United States of America, excluding its conflict of laws rules. The laws of the United States of America shall govern issues involving the creation, protection, or exercise of rights in Intellectual Property.

You acknowledge that the Birlasoft's and Company's Confidential Information is of great competitive importance and commercial value to Birlasoft and Company, and that improper use or disclosure of the Confidential Information by the you will cause Irreparable harm to the Birlasoft or Company, for which remedies at law will not be adequate. In the event of a breach or threatened breach by the you of any of the provisions of this Agreement, you hereby consent and agree that Birlasoft shall be entitled to seek, in addition to other available remedies, a temporary or permanent injunction or other equitable relief against such breach or threatened breach from any court of competent jurisdiction, without the necessity of showing any actual damages or that monetary damages would not afford an adequate remedy, and without the necessity of posting any bond or other security. The aforementioned equitable relief shall be in addition to, not in lieu of, legal remedies, monetary damages or other available forms of relief.

- You agree and understand that any breach of this Consultant Undertaking Agreement shall result in appropriate legal action being by Birlasoft or Company against you.

You agree that this Agreement may not, on behalf of or in respect to Birlasoft, be changed, modified, abandoned, or otherwise terminated in whole or in part except by an instrument in writing signed by an officer or otherwise authorized executive of Birlasoft.

If the foregoing terms are acceptable to you as a condition for performing services for Birlasoft, please indicate your acceptance by signing one copy of this Agreement and returning it to Birlasoft. You may retain the other copy for your information and file.

By: _____

ACCEPTED:

SARAVANAN VELUSAMY

Printed Name

Date: 08/18/2025

Exhibit 1

Consultant Privacy Notice

1. How we use your information

Introduction

This Notice is a statement of how Birlasoft ("we" and "our") uses the Personal Information relating to its supplier/vendor Consultants, ("you" and "your").

"Personal Information" means information about you, and from which you could be identified, including information which may be protected under applicable privacy or data protection laws. The Personal Information relating to you which we may collect, use, transfer, disclose or otherwise process, includes:

- **Personal details:** name, identification number, work and home contact details (if applicable, including email, phone numbers, physical address), information provided on resume, gender, national identification number, social security number, emergency contact information, and photograph.
- **Documentation required under immigration laws:** Citizenship, passport data, details of residency, licences, or work permit.
- **Position:** Description of current position, job title, employer, or vendor information.
- **Talent Management Information:** Details contained in job applications.
- **System Access Data:** Information required to access organization systems and applications.
- **Special Categories of Personal Information:** We may also collect certain types of special categories of Personal Information where required or permitted by local law.

This Notice is intended to help you understand why and how we may use your information. This list and examples above are illustrative and non-exhaustive.

Birlasoft will process your Personal Information where such processing is: (i) reasonably necessary for the performance of your Services for Birlasoft through a Birlasoft vendor ("Supplier"); or (ii) reasonably necessary for compliance with a legal obligation to which Birlasoft is subject. The collection of this Personal Information by Birlasoft is usually necessary.

2. Purposes of Processing Personal Information

The purposes for which we may collect, use, transfer, disclose or otherwise process your Personal Information, subject to applicable law, include:

- **Managing Workforce:** Recruitment, Background check, managing Supplier/Consultant relations processes.
- **Communications, Facilities and Emergencies:** Facilitating communication with you, ensuring business continuity, protecting the health and safety of others, safeguarding, and maintaining IT infrastructure, office equipment, facilities and other property, facilitating communication with you.
- **Business Operations:** Operating and managing IT, project management, business continuity, compilation of audit trails and other reporting tools, maintaining records relating to business activities, financial management and reporting, communications.
- **Compliance:** Complying with legal and other requirements, record-keeping and reporting obligations, physical access policies, conducting audits, management and resolution of health and safety matters, compliance with government inspections and other requests from government or other public authorities, responding to legal process such as subpoenas, pursuing legal rights and remedies, defending litigation and managing any internal complaints or claims, conducting investigations and complying with internal policies and procedures.

- **Consultant Monitoring:** In accordance with applicable laws and with your consent where required by law, we may monitor the use of our information technology and communications systems and the information they contain, including traffic and usage data, for purposes that may include systems maintenance, security, compliance with legal requirements and implementation of internal policies and procedures. Video footage is also being recorded on our CCTV system installed at Birlasoft's premises. We collect and process information to ensure the physical security of the people and items, security of confidential information located in Birlasoft's premises or accessible from Birlasoft's premises. This is done to prevent loss, frauds, thefts, injuries, terrorism, and other events of such kind in Birlasoft's premises.

This list and examples above are illustrative and non-exhaustive.

3. Fairness and Purpose

Birlasoft will collect adequate, relevant and necessary Personal Information, and will process such information fairly and lawfully for the purpose it is collected. The purpose of collection will be specified not later than at the time of data collection, or on each occasion of change of purpose.

4. Accuracy of Information

Should your personal circumstances change, you should notify the suitable function/delivery project and update your details immediately.

5. Distribution of Information

a. Information Disclosure

Birlasoft does not share, sell, rent, or trade Personal Information with third parties for their sole promotional purposes or as otherwise outlined in this Privacy Notice. Birlasoft may share information with third party service providers contracted to provide services on our behalf for processing to provide certain business purposes. These third-party service providers may only use information we provide to them as requested and instructed by Birlasoft.

- Birlasoft may disclose your Personal Information as we believe to be necessary or appropriate:
 - under applicable law, including laws outside your country of residence;
 - to comply with legal process;
 - to respond to requests from public and government authorities, including public and government authorities outside your country of residence, for national security and/or law enforcement purposes;
 - to enforce our terms and conditions; and
 - to allow us to pursue available remedies or limit the damages that we may sustain.
- Additionally, in the event of a reorganization, merger, sale, joint venture, assignment, transfer or other disposition of all or any portion of our business, assets or stock (including in connection with any bankruptcy or similar proceedings), we may transfer the Personal Information we have collected to the relevant third party.

We may share information with governmental agencies or other companies assisting us in fraud prevention or investigation. We may do so when:

- permitted or required by law; or,
- trying to protect against or prevent actual or potential fraud or unauthorized transactions; or,
- investigating fraud which has already taken place. The information is not provided to these companies for marketing purposes.

If Birlasoft goes through a business transition, such as a merger, acquisition by another organization, or sale of all or a portion of its assets, your Personal Information collected through our website(s) may be among the assets

transferred. A prominent notice will appear on our website(s) after any such change in ownership or control of your Personal Information.

b. Cross Border Data Transfer

When conducting business activities, working on organization projects, or implementing new processes or systems, a function may require the transfer of Personal Information to other entities or third parties that are located outside of the Birlasoft operation's country of business. While permissible data transfer mechanisms are defined by applicable law or regulation, examples include:

- a data transfer agreement with the party who will access or obtain the Personal Information;
- notice to and/or approval from a country's local data protection authority; or
- notice to and/or consent from the individual whose data is to be transferred.

6. Data Retention

Birlasoft will hold your information in line with our Data Protection Policy and as per applicable law. We will only keep your Personal Information for as long as it is appropriate to fulfil the purposes for which Birlasoft collected that Personal Information, unless the law permits or requires that Birlasoft to retain it for longer (such as tax, accounting, or other legal requirements).

7. Your rights in relation to your Personal Information

In certain circumstances, you may also have the right related to processing of your Personal Information under GDPR. To make such a request, please use the "[data subject request form](#)" uploaded on our website <https://www.birlasoft.com/legal/privacy-policy> and submit it to privacy@birlasoft.com. We will consider and act upon any request in accordance with applicable Data protections laws.

8. Lodge a complaint to Supervisory Authority

If you are resident in the EEA and you believe we are unlawfully processing your Personal Information, you also have the right to complain to your local Data protection supervisory authority.

9. Contact US

If you have questions or concerns about our privacy practices, or this notice, you may contact our Data Protection Officer (DPO) Amit Dhawan, by email at privacy@birlasoft.com

10. Updates to this Notice

This Notice may be updated periodically and without prior notice to reflect changes in Birlasoft's privacy practices. Birlasoft will let you know about any significant changes to this Notice and will indicate at the top of the Notice when it was most recently updated.